

13. 9:00 AM CASE NUMBER: C23-02791
CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ELIYAHU Y KAPLUNOVSKY
FILED BY: MARTINEZ, LUIS
TENTATIVE RULING:

See Tentative Ruling, Line 12, above.

14. 9:00 AM CASE NUMBER: C24-00733
CASE NAME: HAMDY FAYAD VS. GAMAL AMIN
*HEARING ON MOTION IN RE: AMEND COMPLAINT FOR COMPULSORY JOINDER OF DEFENDANTS
FILED BY: FAYAD, HAMDY
TENTATIVE RULING:

Plaintiff Hamdy Fayad's motion to amend complaint is **granted as to Machine Learning and denied without prejudice as to Shahab Amin**. Plaintiff shall file and serve a second amended complaint by April 8, 2026.

In March 2024, Plaintiff filed this case. He alleges that a dispute arose between Plaintiff and Gamal Amin and Nafisa Shafy regarding the sale of a liquor store in San Francisco. Plaintiff obtained an arbitration award against Amin and Shafy for almost \$300,000. Plaintiff alleges that Amin and Shafy fraudulently transferred their assets to Shehab Amin (their son). Silverman, LLC is alleged to have owned the liquor store assets and was also involved in the fraudulent transfers. Plaintiff sued Gamal Amin, Nafisa Shafy, Shehab Amin and Silverman, LLC for fraudulent transfer and conveyance. In the original complaint, Plaintiff sued Shehab Amin as "Shehab Amin aka Shahab Amin". (FAC ¶4.)

Now, Plaintiff seeks permission to file a second amended complaint to add Shahab Amin as a separate defendant so that complaint will include both Shehab Amin and Shahab Amin. Plaintiff also seeks permission to add Machine Learning Incorporated as a defendant who is alleged to be an owner of Silverman, LLC. (Lin dec. ex. H (proposed SAC).)

Plaintiff brings this motion under Code of Civil Procedure section 389. Section 389(a) states that "[a] person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party." (Section 389(a); see also, *Bianka M. v. Superior Court* (2018) 5 Cal.5th 1004, 1018-19.)

Defendants in a fraudulent transfer case are sometimes necessary parties. Where a personal judgment is sought, not all parties must be included in a fraudulent conveyance cause of action. (*Diamond Heights Village Assn., Inc. v. Financial Freedom Senior Funding Corp.* (2011) 196 Cal.App.4th

290, 304.) However, where a cause of action seeks to void a transfer of property and thus, “void [a non-party’s] interest in the property, [plaintiff] should have joined the deed beneficiary as a party. (Code Civ. Proc., § 379.) Transferees are necessary parties ‘in an action to declare a transfer void as fraudulent.’” (*Ibid.*)

Plaintiff argues that Shahab and Machine Learning are indispensable parties. To the extent Plaintiff is seeking to set aside the deed of trust recorded on the Walnut Creek property, that document was recorded and shows Shehab as the beneficiary on the deed of trust. (Comp. ex. C; prayer for relief 1.) There is no showing that Shahab has an ownership interest in the deed of trust and thus, it is not clear why Shahab would be a necessary party if the Court sets aside or voids the deed of trust.

As to Machine Learning, Plaintiff seeks to set aside the conveyance to Machine Learning. (Comp. and FAC prayer for relief 2.) It is alleged that Defendants added Machine Learning as a member of Silverman, along with BOTH Shehab and Shahab. (Comp. ¶19; FAC ¶26.) The 2025 statement of information for Machine Learning shows Shehab and Shahab as officers in the company. (Lin dec. ex. D.) The Court finds that Machine Learning is necessary parties as to the request to set aside the conveyance as to Machine Learning. It is not clear that the members or members of a company must be named, as that is not normally done.

There is, however, another problem with adding Shabah as a defendant. It appears that both sides believe that Shehab and Shahab are the same person, but in an abundance of caution Plaintiff wants to add Shahab as a second person. Plaintiff argues that the incorporation documents for Machine Learning show two individuals, however, it is just as likely that they show one individual with two spellings of his name. Plaintiff has not provided any other evidence, such as discovery or deposition responses, addressing whether there are one or two individuals. The Court’s concern here is that Plaintiff is seeking permission to add a new party, which Plaintiff and his lawyer do not believe is actually a real person. At this time, the Court is not convinced that Plaintiff and his lawyer have a reasonable belief that Shehab and Shahab are two different individuals. As to Shabah, the request for leave to amend is denied without prejudice.

Defendants argue that this motion should be denied based upon delay and because they will be prejudiced with added costs of preparation and increased discovery. There is significant delay here as Machine Learning could have been added to the original complaint. Still, the cases cited by Defendants on this issue involve leave to amend under Code of Civil Procedure section 473(b), which is not the standard applied here. Further, there is no showing of prejudice here.

Therefore, the Court **grants** Plaintiff’s motion to add Machine Learning as a defendant, and **denies** the motion to add Shahab Admin as a separate defendant. The allegations regarding Machine Learning in the proposed SAC may be included when adding Machine Learning as a defendant.